

## CONTRACT OF LEASE

### KNOW ALL MEN BY THESE PRESENTS:

This Contract of Lease made and entered into by and between:

**JEREMIAH M. UY** of legal age, Filipino, with residence and postal address at No. 11 V. Agbayani St., BF Resort Village, Las Pinas City and hereinafter referred to as the "**LESSOR**".

- and -

**CHRISTOPHER PALMA DAVID & BEATRICE GRACE PABALAN BOLDO**, both Filipino National with Home Address at #1 Faith St. Teresa Village Brgy Bahay Toro Quezon City, Philippines, and hereinafter referred to as the "**LESSEE**".

### WITNESSETH THAT:

WHEREAS, the LESSEE desires to lease from the LESSOR the below mentioned residential unit and the LESSOR has agreed to lease to the LESSEE the said residential unit.

NOW, AND THEREFORE, for and in consideration of the foregoing premises and the mutual covenants herein contained, the LESSOR has let and by these presents does hereby let and lease unto the LESSEE the aforesaid residential unit and the LESSEE hereby accepts the same by way of lease subject to the following terms and conditions;

#### 1. SUBJECT OF THE LEASE

The subject of this Contract of Lease is Residential Unit **22E SOUTH WING ONE UPTOWN RESIDENCES** located at BGC, Taguig City, Metro Manila, hereinafter referred to as the "**Leased Premises**", with furniture & appliances listed in "Annex A".

#### 2. TERM OF THE LEASE

The lease shall be for a period of SEVEN (7) months commencing on **July 1, 2025** and ending on **January 30, 2026**. This lease may be extended or renewed upon mutual agreement of the parties and provided further that the LESSOR receives the LESSEE'S written notice of its desire to extend or renew the lease at least sixty (60) days before the end of the lease. A 10% of monthly rent increase shall apply upon renewed lease. The LESSEE shall not assign or sublease the Leased Premises hereby leased or any part thereof without the written consent of the LESSOR.

#### 3. RENTAL FEE

The Parties herein agree that the monthly rental is **FORTY THOUSAND PESOS (Php40,000.00)** inclusive of Association dues. Utilities (Cable, electricity and water) shall be for the account of the LESSEE.

#### 4. TERMS OF PAYMENT

Upon execution of the contract, the LESSEE agrees to pay the LESSOR :

- a. The sum of **FORTY THOUSAND PESOS (Php40,000.00)** represents One (1) month rental fee to be paid on **June 26, 2025**
- b. The sum of **EIGHTY THOUSAND PESOS (Php80,000.00)** as SECURITY DEPOSIT Equivalent to Two (2) months which was already paid last **November 29, 2023**.

**TOTAL OF ONE SIXTY THOUSAND PESOS (Php160,000.00)**

The security deposit shall answer for the LESSEE'S obligations under this Contract including unpaid utility bills such but not limited to electricity, water, cable television, telephone and internet connection. The security deposit shall also answer for unpaid costs of repair to the premises for damages caused by default or negligence of the LESSEE or any person under the LESSEE'S employ and such other charges for the account of the LESSEE'S actual occupancy of the Premises. This notwithstanding, should the security deposit be insufficient to cover costs of repairs and/or unpaid utilities as aforesaid, the LESSOR has the right to recover the amount/s in excess of the security deposit and the LESSEE is obligated to pay the said excess amount. **The Security Deposit shall in no case be applied as Rental Payment.**

**The security deposit shall be refunded by the LESSOR to the LESSEE within 30 days after the termination or expiration of the contract provided that no damages has been done to the unit and that the utility bills are paid in full.**

**5. GAS, ELECTRIC CURRENT, ASSOCIATION DUES ETC.**

All charges and expenses for gas, water, electric current, telephone, cable fees and other public utilities now installed or hereinafter to be installed shall be for the account of the LESSEE.

The rent is inclusive of Association dues, thus, DUES remittances shall be an obligation of the LESSOR to the Administration's office of **ONE UPTOWN RESIDENCES** located at BGC, Taguig City, Metro Manila.

**6. USE OF PREMISES**

The LESSEE reserves the right to transfer to the said premises as soon as advance payment of TWO MONTHS (2) advance rentals and TWO MONTHS (2) security deposit plus post dated checks (PDC). The Leased Premises shall be used by the LESSEE, for residential purposes only and shall not be converted to any other purpose without the prior written consent of the LESSOR.

**7. ASSIGNMENT AND SUBLEASE**

The LESSEE may not directly or indirectly assign, sublease, transfer, convey, mortgage or in any way encumber its right of possession and lease over the Leased Premises without the prior written consent of the LESSOR

**8. IMPROVEMENTS**

The LESSEE shall not change the locks, paint, make alterations or additions to, or improvements upon the Leased Premises, including electrical and plumbing installations thereon, without first obtaining the written consent of the LESSOR.

Upon the expiration of the lease, all fixed and permanent improvements introduced or built on the Leased Premises by the LESSEE with the consent of the LESSOR can and may be removed by the LESSEE without defacing or causing damage to the Leased Premises. In case of the LESSEE's failure to remove the improvements at the expiration or termination of the lease, or in case it is not possible to remove the improvements without defacing or causing damage to the Leased Premises, it shall be the LESSOR's right to appropriate the improvements without any obligation on the Latter's part to pay for its value or cost to the LESSEE. The LESSOR shall, furthermore, have the option whether or not to charge the LESSEE with the cost of removing the improvements and restoring the Leased Premises to its original condition.

**9. MOVABLE IMPROVEMENTS**

The LESSEE may install movable furnishings, appliances and decorative items within Leased Premises, which shall remain the property of the LESSEE. The LESSEE shall take

care that the removal of the items shall not cause any damage to the Leased Premises. In case of the LESSEE's failure to remove the improvements at the expiration or termination of the lease, or in case it is not possible to remove the improvements at the expiration or termination of the lease, or in case it is not possible to remove the improvements without defacing or causing damage to the Leased Premises, it shall be the LESSOR's right to appropriate the improvements without any obligation on the latter's part to pay for its value or cost to the LESSEE. The LESSOR shall, furthermore, have the option whether or not to charge the LESSEE with the cost of removing the improvements and restoring the Leased Premises to its original condition.

#### 10. **SANITATION AND REPAIRS**

The LESSEE has inspected the premises and found the same to be in good and tenantable condition.

The LESSEE shall strictly maintain the Leased Premises in clean and in sanitary condition and keep them at all times in very good condition. The LESSEE shall keep the Leased Premises free from undue accumulation of waste materials and remove any facility, equipment, machinery, improvements and any other materials which in the opinion of the LESSOR constitute nuisance, fire and health hazards, and danger to the public. **The LESSEE shall not keep, deposit or store within the Leased Premises any prohibited substance or drugs.**

The LESSOR shall be responsible for all major repairs on the water, electrical and sewage installations caused by ordinary wear and tear. Repairs due to the fault or negligence of the LESSEE, members of her household, guests and visitors shall be for account of the LESSEE.

The LESSOR undertakes to do all the necessary repairs for the breakdowns in the premises, which may occur within the first thirty (30) days of the lease, provided that, the breakdowns are not due to the fault or negligence of the LESSEE, and is reported to the LESSOR by the LESSEE in writing within the said period.

Minor repairs shall be for the account of the LESSEE. For purposes of clarifying these provisions, major repairs for the Account of the Lessor are those costing **Five Thousand Pesos (Php5,000.00)** or more each, while, minor repairs are those costing less than **Five Thousand Pesos (Php5,000.00)** each.

Semi-Annual cleaning of the air-conditioning units will be for the account of the LESSEE.

#### 11. **INSURANCE**

Fire insurance charges shall be for the LESSOR's account. For its own protection, the LESSEE may insure his own furniture and fixtures, equipment and other properties found and installed in the Leased Premises.

#### 12. **THIRD PARTY LIABILITY**

The LESSEE during his occupancy of the leased Premises shall hold the LESSOR free and harmless from any damage or liability or responsibility to any person or property arising out of, or as a consequence of, the use of the Leased Premises by the LESSEE, his agents and guests.

#### 13. **RULES AND REGULATIONS**

The LESSEE agrees to abide by the existing rules and regulations promulgated by the **ONE UPTOWN RESIDENCES** Administration office and any other laws, ordinances, rules and regulations promulgated by competent authorities affecting the occupancy of the Leased Premises.

#### 14. **SALE, TRANSFER AND MORTGAGE**

In the event of sale, transfer, mortgage or encumbrance of the same, the LESSOR shall warrant that the purchaser, mortgage or encumbrances shall respect all terms and conditions of this Contract of Lease.

**15. RIGHT TO ENTER LEASED PREMISES**

The LESSOR reserves the right to enter and inspect the premises at reasonable time of the day and after the LESSEE has been previously notified.

**16. EXPIRATION/TERMINATION/CANCELLATION**

The LESSEE, upon expiration or termination and/or cancellation of the lease, shall promptly surrender the Leased Premises to the LESSOR, in the same tenantable condition in which the LESSEE received it, devoid of all occupant's furniture, articles and effects, subject to the provisions of section 7.

Sixty (60) days prior to the return of the Leased Premises, the LESSOR may show the premises to prospective tenants through his representatives at reasonable hours and with written notice to the LESSEE.

**17. PRE-TERMINATION**

In the event of pre-termination of this Contract of Lease during the Lease period, an amount equivalent to Two (2) months Security Deposit shall be forfeited in favor of the LESSOR as liquidated damages.

**18. BREACH**

Any violation of the terms of this contract on the part of the LESSOR or LESSEE shall be sufficient ground for the termination of this Contract of Lease by the aggrieved party.

In the event of termination of this Contract of Lease due to the violation by the LESSEE of any of the terms hereof, the LESSOR has the right to refuse the LESSEE, his/her relatives, agents, or representatives entry and / or access to the Leased Premises by padlocking the entrance to the unit and cutting off its utility services.

**19. WAIVER CLAUSE**

Failure of either party to insist in one or more instances upon strict performance of any of the covenants of this lease or exercise any option therein contained, shall not be construed as abandonment or cancellation or waiver of such covenant or option. No waiver, be it either party, shall be deemed to have been made unless expressed in writing and signed by the party or parties concerned.

IN WITNESS WHEREOF, the parties have hereunto signed the Contract of Lease on June 26, 2025 at Taguig City, MM, Philippines.

LESSOR :

  
JEREMIAH W. UY

LESSEE :

  
BEATRICE GRACE FABALAN BOLDO

  
CHRISTOPHER PALMA DAVID

SIGNED IN THE PRESENCE OF:

\_\_\_\_\_

\_\_\_\_\_

**ACKNOWLEDGMENT**

REPUBLIC OF THE PHILIPPINES)  
TAGUIG CITY ) S.S.

I certify that on this date before me, a notary public duly authorized in the municipality named above to take acknowledgments, personally appeared:

| Name                         | Tax Identification No.<br>/ Passport No. | Date/Place<br>of Issue                |
|------------------------------|------------------------------------------|---------------------------------------|
| JEREMIAH M. UY               | Passport # P2766177B                     | DFA NCR South/ August 14, 2019        |
| BEATRICE GRACE PABALAN BOLDO | Passport # P6591063A                     | DFA NCR South/<br>March 27, 2028      |
| CHRISTOPHER PALMA DAVID      | Passport # P2766954B                     | DFA NCR Northeast/<br>August 13, 2029 |

Who are personally known to me to be the same persons described in the foregoing instrument, who acknowledged before me that their respective signature on the instrument were voluntarily affixed by them for the purposes stated therein, and who declared to me that they have executed the instruments as their free and voluntary act and deed.

WITNESS MY HAND AND SEAL this \_\_\_\_\_ day of SEP 19 2025

Doc. No. 512  
Page No. 184  
Book No. 24  
Series of 2025.

**ATTY. JORGEY Y. SAMPOR**

Notary Public

For and in the City of Las Piñas, Metro Manila

Appt. No. LP-24-023 Until December 31, 2026

ISP No. 394893/ 1 / 3 / 24 / Roll No. 56539

MCLE NO. VII-0017824-5/12/22

PTR No. 12804057-1/2/25 Las Piñas City

254 Alabang Zapote Rd. Pamplona 2, Las Piñas City

Tel No. 02-877-6125/09165464886